

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

EDUARDO BEDFORD,

INDEX NO. _____

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

-against-

SUMMONS

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER FABIO CHECO (Shield
#8177), POLICE OFFICER MOISES GARCIA (Shield #5782),
POLICE OFFICER THOMAS WARKENTHIEN (Shield #3876),
SERGEANT STEPHEN MONROE (Shield #2330) and
JOHN/JANE DOES 1-12 (actual names unknown at this time),

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer, or if the complaint is not served with this summons, to serve a
notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
June 10, 2018

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

POLICE OFFICER FABIO CHECO (Shield #8177)
Detective Squad
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

POLICE OFFICER MOISES GARCIA (Shield #5782)
40th Precinct
257 Alexander Avenue
Bronx, NY 10454

POLICE OFFICER THOMAS WARKENTHIEN (Shield #3876)
Warrant Squad
300 Gold Street
Brooklyn, NY 11201

SERGEANT STEPHEN MONROE (Shield #2330)
Narcotics Borough Bronx
One Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

EDUARDO BEDFORD,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER FABIO CHECO (Shield
#8177), POLICE OFFICER MOISES GARCIA (Shield #5782),
POLICE OFFICER THOMAS WARKENTHIEN (Shield #3876),
SERGEANT STEPHEN MONROE (Shield #2330) and
JOHN/JANE DOES 1-12 (actual names unknown at this time),

Defendants.

INDEX NO.

VERIFIED COMPLAINT

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Amended
Verified Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, EDUARDO BEDFORD (hereinafter "BEDFORD"), at all times herein mentioned was and still is a resident of the County of the Bronx, City and State of New York.
2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.
3. Defendant POLICE OFFICER FABIO CHECO (Shield #8177) (hereinafter "CHECO") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.
4. On or about June 10, 2015, the defendant CHECO was assigned to the 40th Precinct of the NYPD at the time of the occurrences alleged in this complaint.
5. Defendant CHECO is being sued in both his individual and official capacity.

6. Defendant POLICE OFFICER MOISES GARCIA (Shield #5782) (hereinafter “GARCIA”) was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

7. On or about June 10, 2015, the defendant GARCIA was assigned to the 40th Precinct of the NYPD at the time of the occurrences alleged in this complaint.

8. Defendant GARCIA (Shield #5782) is being sued in both his individual and official capacity.

9. Defendant POLICE OFFICER THOMAS WARKENTHIEN (Shield #3876) (hereinafter “WARKENTHIEN”) was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

10. On or about June 10, 2015, the defendant WARKENTHIEN was assigned to the 40th Precinct of the NYPD at the time of the occurrences alleged in this complaint.

11. Defendant WARKENTHIEN is being sued in both his individual and official capacity.

12. Defendant SERGEANT STEPHEN MONROE (Shield #2330) (hereinafter “MONROE”) was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

13. On or about June 10, 2015, the defendant MONROE was assigned to the 40th Precinct of the NYPD at the time of the occurrences alleged in this complaint.

14. Defendant MONROE is being sued in both his individual and official capacity.

15. Defendant POLICE OFFICERS JOHN/JANE DOES 1-12 were NYPD police officers, and at all times relevant hereto, acted in that capacity as agents, servants, and/or

employees of Defendant CITY and within the scope of their employment.

16. On or about June 10, 2015, the defendant POLICE OFFICERS JOHN/JANE DOES 1-12 were assigned to the 40th Precinct of the NYPD at the time of the occurrences alleged in this complaint.

17. They are being sued in both their individual and official capacities.

18. At all relevant times hereto, Defendants were acting under the color of state and local law.

19. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

20. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

21. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendants CHECO, GARCIA, WARKENTHIEN, MONROE and POLICE OFFICERS JOHN/JANE DOES 1-12.

22. On June 10, 2015, the plaintiff BEDFORD was walking down East 161st Street passing by the Associated Supermarket located at 725 East 161st Street, Bronx, New York when an unmarked car pulled up and the driver yelled at him to stop. Upon information and belief, the driver was defendant CHECO.

23. Plaintiff turned around to look at who was yelling at him and noticed three husky males running towards him. Plaintiff started to run. The three men on foot and the car continued

to follow him as he made a right turn onto Prospect Street and kept running. Upon information and belief these men were defendants CHECO, GARCIA and WARKENTHIEN.

24. At the intersection of Hewitt Place and East 161 Street, the driver of the vehicle exited the vehicle with his gun drawn; chased the Plaintiff around the car; yelled at him that "he was going to shoot him to stop." Upon information and belief, this individual was defendant CHECO.

25. As the Plaintiff tried to run back towards Hewitt Place, he saw the original three men on foot. One of the men grabbed him, slammed him to the ground and handcuffed him. A second man punched him on the left side of his body and another put his knees on top of the left side of his face pressing his face into the ground. It was then that the men identified themselves as police officers. Upon information and belief, these individuals were defendants CHECO, GARCIA and WARKENTHIEN.

26. Plaintiff was taken to the 40th precinct where he was strip searched at the direction of defendant MONROE.

27. Despite plaintiff asking for medical attention, it was not until Plaintiff's mother arrived, that an ambulance was called and Plaintiff was taken in custody to Lincoln Hospital. Upon information and belief, it was defendant MONROE who denied medical treatment to the plaintiff.

28. Thereafter, he was taken to central booking and charged with possession of drugs.

29. After several court appearances Plaintiff was given an ACD.

30. On June 10, 2015, at the aforementioned location, the plaintiff was beat up by multiple

members of the NYPD, including the individually named defendants herein CHECO, GARCIA, WARKENTHIEN, MONROE and POLICE OFFICERS JOHN/JANE DOES 1-12.

31. On June 10, 2015, the plaintiff, BEDFORD was punch, kicked, stomped, brutalized and beaten prior to and while being handcuffed and forcibly detained by multiple members of the NYPD, including the individually named defendants CHECO, GARCIA, WARKENTHIEN, MONROE and POLICE OFFICERS JOHN/JANE DOES 1-12.

32. On June 10, 2015, multiple members of the NYPD, including the individually named defendants herein CHECO, GARCIA, WARKENTHIEN, MONROE and POLICE OFFICERS JOHN/JANE DOES 1-12 brought plaintiff BEDFORD by ambulance to the hospital.

33. Based upon information and belief, the officers, including the individually named defendants CHECO, GARCIA, WARKENTHIEN, MONROE and POLICE OFFICERS JOHN/JANE DOES 1-12 possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

34. On June 10, 2015, plaintiff BEDFORD was caused to suffer severe personal injuries.

35. That heretofore and on the September 3, 2015, BEDFORD's Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth the name and post office address of BEDFORD, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained.

36. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

37. On December 9, 2016, a statutory hearing was conducted.

AS AND FOR A FIRST CAUSE OF ACTION
Pursuant to §1983 (EXCESSIVE FORCE)

38. Paragraphs 1 through 37 are hereby realleged and incorporated by reference herein.

39. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

40. That Defendants had no legal cause or reason to use excessive force in effectuating BEDFORD's arrest or after BEDFORD was arrested and in custody.

41. That Defendants violated BEDFORD's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

42. That at the time of the arrest or while in custody, BEDFORD did not pose a threat to the safety of the arresting officers.

43. That BEDFORD was not actively resisting arrest or attempting to evade arrest.

44. That defendant CITY, through its officers, agents, and employees, unlawfully subjected BEDFORD to excessive force while effectuating his arrest.

45. That Defendants actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

46. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of BEDFORD's rights, subjected BEDFORD to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

47. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of BEDFORD's civil rights, including but not limited to the right to be free from the application of excessive force.

48. That upon information and belief, in 2010, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

49. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

50. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

51. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of defendant CITY to the constitutional rights of arrestees and were the cause of the violations of BEDFORD's rights alleged herein.

52. By reason of the foregoing, BEDFORD suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SECOND CAUSE OF ACTION
Pursuant to State Law (EXCESSIVE FORCE)

53. Paragraphs 1 through 52 are hereby realleged and incorporated by reference herein.

54. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.

55. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

56. That Defendants had no legal cause or reason to use excessive force in effectuating BEDFORD's arrest or after BEDFORD was arrested and in custody.

57. That at the time of the arrest, BEDFORD did not pose a threat to the safety of the arresting officers.

58. That BEDFORD was not actively resisting arrest or attempting to evade arrest.

59. That Defendants actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

60. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of BEDFORD's rights, subjected BEDFORD to excessive force while effectuating his arrest, in violation of the laws of the State of New York.

61. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of BEDFORD's civil rights, including but not limited to the right to be free from the application of excessive force.

62. By reason of the foregoing, BEDFORD suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A THIRD CAUSE OF ACTION
Pursuant to § 1983 (FALSE ARREST)

63. Paragraphs 1 through 62 of this complaint are hereby realleged and incorporated by reference herein.

64. That Defendants had neither valid evidence for the arrest of BEDFORD nor legal cause or excuse to seize and detain him for approximately three days.

65. That in detaining BEDFORD for approximately two days, and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. BEDFORD was but one of those persons.

66. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

67. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

68. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of BEDFORD's rights alleged herein.

69. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of BEDFORD's rights, subjected BEDFORD to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

70. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of BEDFORD's civil rights, including but not limited to the right to be free from being falsely arrested.

71. By reason of the foregoing, BEDFORD suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A FOURTH CAUSE OF ACTION
Pursuant to State Law (FALSE ARREST)

72. Paragraphs 1 through 71 are hereby realleged and incorporated by reference herein.

73. That the seizure, detention and imprisonment of BEDFORD was unlawful in that Defendants had no probable cause to detain, arrest and/or imprison him.

74. That Defendants intended to confine BEDFORD.

75. That BEDFORD was conscious of the confinement and did not consent to it.

76. That the confinement was not otherwise privileged.

77. By reason of Defendants acts and omissions, Defendants, acting in gross and wanton disregard of BEDFORD's rights, deprived him of his liberty when they subjected him to an unlawful, illegal and excessive detention, in violation of State law.

78. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of BEDFORD's civil rights, including but not limited to the right to be free from false arrest.

79. That by reason of the foregoing, BEDFORD suffered physical injuries, mental injuries, economic injury, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A FIFTH CAUSE OF ACTION
Pursuant to § 1983 (MALICIOUS PROSECUTION)

80. Paragraphs 1 through 79 are hereby realleged and incorporated by reference herein.

81. That Defendants, with malicious intent, arrested BEDFORD and initiated a criminal proceeding despite the knowledge that BEDFORD had committed no crime.

82. That all charges against BEDFORD were terminated in his favor.

83. That there was no probable cause for the arrest and criminal proceeding.

84. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of BEDFORD's rights, deprived BEDFORD of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

85. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the

above described policies and customs, BEDFORD was maliciously prosecuted despite the fact that he had committed no violation of the law.

86. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

87. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

88. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of BEDFORD's rights alleged herein.

89. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

90. That upon information and belief, in 2006, Defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

91. That by reason of the foregoing, BEDFORD suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A SIXTH CAUSE OF ACTION
Pursuant to State Law (MALICIOUS PROSECUTION)

92. Paragraphs 1 through 91 are hereby realleged and incorporated by reference herein.

93. That Defendants acted with malicious intent, arrested BEDFORD and initiated a criminal proceeding despite the knowledge that BEDFORD had committed no crime.

94. That charges against BEDFORD are still pending.

95. That there was no probable cause for the arrest and criminal proceeding.

96. That by reason of Defendants acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of BEDFORD's rights, deprived BEDFORD of his liberty when they maliciously prosecuted him in violation of the Laws of the State of New York.

97. That by reason of the foregoing, BEDFORD suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A SEVENTH CAUSE OF ACTION
Pursuant to State Law (Assault and Battery)

98. Paragraphs 1 through 83 are hereby realleged and incorporated by reference herein.

99. That Defendants intended to cause harmful bodily contact to BEDFORD.

100. That Defendants, in a hostile manner, voluntarily caused BEDFORD'S injuries.

101. That Defendants' contact with BEDFORD constituted a battery in violation of the laws of the State of New York.

102. That by reason of the foregoing, BEDFORD suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR AN EIGHTH CAUSE OF ACTION

Pursuant to State Law (Negligence)

103. Paragraphs 1 through 102 are hereby realleged and incorporated by reference herein.

104. That Defendants were reckless, careless, and indifferent to BEDFORD's physical well-being while BEDFORD was in Defendants' custody.

105. That Defendants had a duty to exercise reasonable care to secure the safety of BEDFORD from injury while in Defendants' charge.

106. That Defendants breached their duty to BEDFORD when Defendants failed to exercise reasonable care to secure the safety of BEDFORD while in Defendants' charge, or when Defendants discontinued their aid or protection of BEDFORD and left BEDFORD in a worse position than when Defendants took charge of him.

107. That by the actions described above, defendants jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff.

108. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

109. As a result of the foregoing, BEDFORD was deprived of his liberty, experienced

injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured. All of said injuries may be permanent.

AS AND FOR A NINTH CAUSE OF ACTION
Pursuant to State Law (RESPONDEAT SUPERIOR)

110. Paragraphs 1 through 109 are hereby realleged and incorporated by reference herein.

111. That Defendants were acting in furtherance of the duties owed to their employer defendant CITY.

112. That at all times Defendants were acting within the scope of their employment.

113. That Defendant CITY was able to exercise control over Defendants activities.

114. That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior. By reason of the foregoing, BEDFORD suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

115. As a result of the acts and conduct complained of herein, BEDFORD has suffered and will continue to suffer, physical pain, emotional pain, suffering, permanent disability, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiff has further experienced severe emotional and physical distress.

AS AND FOR A TENTH CAUSE OF ACTION
Pursuant to § 1983 (Denial of Medical Treatment)

116. Paragraphs 1 through 115 are hereby realleged and incorporated by reference herein.

117. That the injuries Plaintiff suffered as a result of Defendants' assault amounted to a serious medical condition.

118. That untreated, Plaintiff's injuries amounted to a substantial risk of serious harm.

119. That Plaintiff requested medical treatment for his injuries.

120. That Defendants refused to provide medical treatment.

121. That the denial of medical care resulted in a substantial risk of serious harm to Plaintiff.

122. That Defendants acted with reckless disregard for the substantial risk.

123. That Defendants denied Plaintiff access to medical care because of a deliberate indifference to the medical need.

124. That by reason of the foregoing, BEDFORD suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorneys fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

WHEREFORE, BEDFORD respectfully requests that judgment be entered:

- a. Awarding BEDFORD compensatory damages in a full and fair sum to be determined by a jury;
- b. Awarding BEDFORD punitive damages in an amount to be determined by a jury;
- c. Awarding BEDFORD interest from June 10, 2015 and
- d. Awarding BEDFORD reasonable attorney's fees pursuant to 42 USC §1988; and
- e. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
June 10, 2018

Roberta D. Asher
By: Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

EDUARDO BEDFORD,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
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POLICE OFFICER THOMAS WARKENTHIEN (Shield #3876),
SERGEANT STEPHEN MONROE (Shield #2330) and
JOHN/JANE DOES 1-12 (actual names unknown at this time),

Defendants.

INDEX NO.

**ATTORNEY'S
VERIFICATION**

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and belief
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County
of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's file,
which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
June 10, 2018

Roberta D. Asher

ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

EDUARDO BEDFORD,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER FABIO CHECO (Shield #8177), POLICE OFFICER MOISES GARCIA (Shield #5782), POLICE OFFICER THOMAS WARKENTHIEN (Shield #3876), SERGEANT STEPHEN MONROE (Shield #2330) and JOHN/JANE DOES 1-12 (actual names unknown at this time),

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: Roberta D. Asher
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the

within named Court on , 2018 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2018, at 9:30
A.M.

Dated: